

August 28, 2026, Civil Law & Motion Tentative Rulings

1. CL0002989 Wells Fargo Bank, N.A. vs. Kevin J. Beard

Plaintiff Wells Fargo Bank, N.A.'s unopposed motion to deem requests for admissions admitted is granted unless Defendant Beard serves, before the hearing, a proposed response to the requests for admission in substantial compliance with Code of Civil Procedure Section 2033.220.

Request to Deem Matters Admitted

A party may move for an order deeming its Requests for Admission ("RFAs") admitted if the party to whom they are directed has failed to serve a timely response. Code Civ. Proc. § 2033.280(b). "The court shall make this order, unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220." Code Civ. Proc. § 2033.280(c). Responses are due within 30 days after service of the discovery. Code Civ. Proc. §2033.250(a). Response time is extended by manner of service. Code Civ. Proc. § 2016.050. Service by mail extends the deadline by 5 calendar days. Code Civ. Proc. § 1013(a).

At bar, Plaintiff served its RFAs on November 19, 2025 by mail, making December 24, 2025 the deadline for Defendant to serve a timely response. Agne Decl., ¶¶ 1-2. Plaintiff has not received any response from Defendant. Agne Decl., ¶ 2. Therefore, the matters specified in Plaintiff's RFAs are deemed admitted, unless defendant serves, before the hearing, a proposed response to the requests for admission in substantial compliance with Code of Civil Procedure Section 2033.220.

Sanctions

Plaintiff's notice states, "Plaintiff is waiving all sanctions that may be awarded by the Court." Notice of Motion, 1:28. Ordinarily "[i]t is mandatory that the court impose a monetary sanction ... on a party ... whose failure to serve a timely response to the [RFAs] necessitated this motion." Code Civ. Proc. § 2033.280(c). The Court accepts Plaintiff's knowing and voluntary relinquishment of its right to sanctions.

2. CU0001323 Ryan Shirley vs. Dynasty Valley, LLC

Plaintiff's motion to approve PAGA settlement is continued on the Court's motion to December 18, 2026, in Department 6 at 10:00 a.m. to allow for adjudication of Defendant's motion to file certain confidential and trade secret information under seal. Further, Plaintiff is ordered to file the supplemental declarations discussed in the supplemental brief from Settlement Administrator ILYM Group, Inc. and Plaintiff Ryan Shirley at least ten (10) days prior to the continued hearing date.